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California law bans Glock pistols - Critics of measure plan prompt legal challenges

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California Gov. Gavin Newsom has signed a law banning sales of one of the most popular types of handgun in the United States.

Assembly Bill 1127, authored by state Assembly Members Jesse Gabriel, D-Encino, and Catherine Stefani, D-San Francisco, were signed by the governor on Oct. 10.

The law bans new sales of "semi-automatic handguns that can be easily converted to a fully automatic machine gun with the use of a simple 'switch,' " according to a statement from Gabriel's office.

It covers handguns manufactured by Glock, as well as similarly designed pistols, that use a "cruciform trigger bar," which lawmakers said makes them easily convertible to fully automatic fire.

What is banned in the new law?

The law, which takes effect Jan. 1, bars firearms dealers from selling Glock-style handguns.

It includes exemptions for law enforcement officials, and private party sales of the weapons will remain legal.

Dealers will be permitted to sell Glock-style guns they received before Jan. 1.

Why are Glocks banned

in California?

The bill's authors argue that although the easy conversion of Glock-style handguns into machine guns has been known for decades, firearm manufacturers have failed to address it.

"While most handgun designs cannot be modified in this way, the select few manufacturers whose guns can be modified have refused to adjust their designs to prevent modification," according to the statement from Gabriel's office.

"As parents and lawmakers, we refuse to stand idly by while our schools and communities are being threatened by illegal machine guns," he said. "This common-sense legislation will ensure that the gun industry is held accountable and that we are doing everything possible to protect our communities from mass shootings."

Stefani agreed.

"Let's call this what it is: reckless greed from gun manufacturers who know their products can be turned into illegal machine guns," she said. "AB 1127 says enough is enough. If these companies won't redesign their weapons to protect our communities, California will hold them accountable."

Critics decry California's Glock ban

Second Amendment proponents said they planned to challenge AB 1127 in court.

"Governor Newsom has once again proven that California's political class will stop at nothing to attack peaceable people and their rights," according to a statement issued by the Firearms Policy Coalition. "AB 1127 is an unconstitutional, bad-faith attempt to outlaw some of the most common firearms in the United States."

"But no tyrant, no politician, and no state will ever be allowed to extinguish the rights of a free people. Not now. Not ever," the statement said.

"FPC and our legal team have been preparing a challenge to AB 1127 for months," the statement said. "We and our allies will move swiftly to strike down this unlawful and immoral ban in federal court. The Constitution – not Gavin Newsom – defines the limits of government power, and we will make sure he once more learns that lesson."

The full text of AB 1127 can be found online at legiscan.com.

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